

**CONTENDER DEVELOPMENT INC.  
EMPLOYMENT AGREEMENT**

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This Employment Agreement for an Employee (the "Agreement") is made and effective as of May 12, 2025

**BETWEEN:**                **Elizabeth Lord** (the "Employee"),

**AND:**                    **Contender Development Inc. DBA Contender America** (the "Company"),  
an entity organized and existing under the laws of the State of Delaware.

**RECITALS**

ITS IS THEREFORE AGREED, in consideration of the covenants and agreements herein contained and the moneys to be paid hereunder, the Company hereby employs the Employee and the Employee hereby agrees to perform services as an Employee of the Company, upon the following terms and conditions:

**I.     TERM**

The Company hereby employs Employee to serve as an exempt employee as a **Marketing Director** and to serve in such additional or different position or positions as the Company may determine in its sole discretion. The term of employment will commence on **May 16, 2025**, and will continue at will until otherwise terminated.

**II.    DUTIES AND RESPONSIBILITIES**

Employee will be reporting to **Thomas Phillips, Chief Growth Officer** of the Company. Within the limitations established by the Company, the Employee shall have each and all of the duties and responsibilities of the previously described position and such other or different duties on behalf of the Company, as may be assigned from time to time.

**III.   ACCEPTANCE OF EMPLOYMENT**

Employee accepts employment with the Company upon the terms set forth above and agrees to devote all Employee's time, energy and ability to the interests of the Company, and to perform Employee's duties in an efficient, trustworthy and business-like manner.

**IV.   DEVOTION OF TIME TO EMPLOYMENT**

The Employee shall devote the Employee's best efforts and substantially all of the Employee's working time to performing the duties on behalf of the Company. Reasonable amounts of time may be allotted to personal or outside business, charitable and professional activities and shall not constitute a violation of this Agreement provided such activities do not materially interfere with the services required to be rendered hereunder. Employee shall not be permitted to provide legal or business services outside of the Company and its affiliates in which Ford Elliott and Josh Howard maintain ownership. Employee may be permitted to otherwise provide services if directed and authorized by Ford Elliott or Josh Howard.

## **V. COMPENSATION**

### **1. Base Salary**

Employee shall be paid a base salary ("Base Salary") at the annual rate of **One Hundred Thousand (\$100,000) dollars** payable in twice monthly installments consistent with Company's payroll practices. The annual Base Salary shall be reviewed at least three weeks prior to the expiration of this Agreement's Term each year, unless Employee's employment hereunder shall have been terminated earlier pursuant to this May 12, 2025 Agreement. The Company will determine if such Base Salary should be increased for the following year in recognition of services to the Company. In consideration of the services under this Agreement, Employee shall be paid the aggregate of basic compensation.

### **2. Payment**

Payment of all compensation to Employee hereunder shall be made in accordance with the relevant Company policies in effect from time to time, including normal payroll practices.

### **3. Withholding**

All sums payable to Employee under this Agreement will be reduced by all federal, state, local, and other withholdings and similar taxes and payments required by applicable law.

## **VI. OTHER EMPLOYMENT BENEFITS**

### **1. Business Expenses**

Upon submission of itemized expense statements in the manner specified by the Company, Employee shall be entitled to reimbursement for reasonable travel and other reasonable business expenses duly incurred by Employee in the performance of her duties under this Agreement.

### **2. Vacation & Sick Leave**

Employee shall be entitled to eighteen (18) days of vacation each year of full employment starting as of the date of employment and resetting each January 1 hereafter. Vacation will be prorated based on the employee's date of employment.

**Your current vacation day balance will transfer over to Contender America.**

Vacation time shall be exclusive of legal holidays, as long as the scheduling of Employee's vacation does not interfere with the Company's normal business operations. Employee may only take five consecutive days of vacation at one time without prior approval, and may not take more than five (5) consecutive days of vacation in any one month without first obtaining approval by the Company. Absent emergency, it is expected that vacation time shall be scheduled at least thirty (30) days prior to use.

Employee shall be given five (5) paid sick days to use each year starting as of the date of employment and resetting each January 1 hereafter. Sick days will also be prorated based on the employee's date of employment.

**Your current sick day balance will transfer over to Contender America.**

### **3. Healthcare Benefits**

The Employee shall be entitled to major medical and health insurance coverage for the Employee and his or her immediate family on such terms, in such amounts and in such coverage as shall be consistent

with the insurance coverage programs available to other salaried employees of the Company generally, as the same may change from time to time.

## **VII. PROFESSIONAL FEES**

The Company shall have exclusive authority to determine the fees, or a procedure for establishing the fees, to be charged by the Company. All sums paid to the Employee or the Company in the way of fees or otherwise for services of the Employee, shall, except as otherwise specifically agreed by the Company, be and remain the property of the Company and shall be included in the Company's name in such checking account or accounts as the Company may from time to time designate.

## **VIII. POLICIES AND PROCEDURES**

The Company shall have the authority to establish from time to time the policies and procedures to be followed by the Employee in performing services for the Company. Employee shall abide by the provisions of any contract entered into by the Company under which the Employee provides services. Employee shall comply with the terms and conditions of any and all contracts entered by the Company.

## **IX. TERMINATION OF EMPLOYMENT**

### **1. Employment Shall be At Will**

Your employment with the Company continues to be for no specific period of time. Your employment with the Company will continue to be on an "at will" basis, meaning that either you or the Company may terminate your employment at any time for any reason or no reason. The Company also reserves the right to modify or amend the terms of your employment at any time for any reason. Any contrary representations which may have been made to you are superseded by this Agreement. This is the full and complete agreement between you and the Company on this term.

### **2. Employee's Notice**

Employee shall use their best efforts to provide Company thirty (30) days written notice of termination of employment.

### **3. Cooperation**

After notice of termination, Employee shall cooperate with the Company, as reasonably requested by the Company, to affect a transition of Employee's responsibilities and to ensure that the Company is aware of all matters being handled by Employee.

### **4. Compensation After Notice of Termination**

After notice of termination has been given by either Company or Employee, as provided in this Article, Employee shall be entitled to receive the compensation provided for in this Agreement until the notice period has expired. It is understood that after the written notice is given by either Company or Employee, Employee shall continue to devote substantially all of the Employee's time to the Employee's normal services for the Company during the notice period, with sufficient time allowed, in the sole discretion of the Company, for Employee to seek new employment.

## **X. CONFIDENTIAL INFORMATION AND TRADE SECRETS**

Employee recognizes and acknowledges that all records with respect to clients, business associates, customer or referral lists, contracting parties and referral sources of the Company, and all personal, financial and business and proprietary information of the Company, its Employees, managers, and members obtained by the Employee

during the term of this Agreement and not generally known in the public (the "Confidential Information") are valuable, special and unique and proprietary assets of the Company's business. The Employee hereby agrees that during the term of this Agreement and following the termination of this Agreement, whether the termination shall be voluntary or involuntary, or with or without cause, or whether the termination is solely due to the expiration of the term of this Agreement, the Employee will not at any time, directly or indirectly, disclose any Confidential Information, in full or in part, in written or other form, to any person, firm, Company, association or other entity, or utilize the same for any reason or purpose whatsoever other than for the benefit of and pursuant to authorization granted by the Company. "Confidential Information" shall also include any information (including, but not limited to, technical or non-technical data, a formula, a pattern, a compilation, a program, a device, a method, a technique, a drawing, a process, financial data, financial plans, product plans, or a list of actual or potential customers) that: (i) derives economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by, other persons who can obtain economic value from its disclosure or use; and (ii) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy. In the case of Company's business, Company's Trade Secrets shall include information or data of or about the Company, including, but not limited to, technical or non-technical data, formulas, patterns, compilations, programs, devices, methods, techniques, drawings, processes, financial data, financial plans, product plans or lists of actual or potential customers or suppliers that: (A) derives economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by, other persons who can obtain economic value from its disclosure or use; (B) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy; and (C) any other information which is defined as a "trade secret" under applicable law.

#### **XI. EXCLUSIVE EMPLOYMENT AND NON-INTERFERENCE**

During employment with the Company, Employee will not do anything to compete with the Company's present or contemplated business, nor will he or she plan or organize any competitive business activity. Employee will not enter into any agreement which conflicts with her duties or obligations to the Company. Employee will not during her employment or within five (5) years after it ends, without the Company's express written consent, directly or indirectly, solicit or encourage any Employee, agent, independent contractor, supplier, customer, consultant or any other person or company to terminate or alter a relationship with the Company.

#### **XII. ASSIGNMENT AND TRANSFER**

Employee's rights and obligations under this Agreement shall not be transferable by assignment or otherwise, and any purported assignment, transfer or delegation thereof shall be void. This Agreement shall inure to the benefit of, and be binding upon and enforceable by, any purchaser of substantially all of Company's assets, any corporate successor to Company or any assignee thereof.

#### **XIII. NO INCONSISTENT OBLIGATIONS**

Employee is aware of no obligations, legal or otherwise, inconsistent with the terms of this Agreement or with their undertaking employment with the Company. Employee will not disclose to the Company, or use, or induce the Company to use, any proprietary information or trade secrets of others. Employee represents and warrants that he or she has returned all property and confidential information belonging to all prior employers. Employee agrees to indemnify Company and any parties with stock holdings or membership interest in Contender Development, Inc., Blackstream Development, LLC, Blackstream, LLC or Blackstream International Real Estate, LLC for and legal action that is caused by Employee's current obligations, and restrictions concerning contracts Employee is currently engaged in.

#### **XIV. GOVERNING LAW**

This Agreement shall be governed by and construed in accordance with the laws of the State of South Carolina without regard to conflict of law principles.

#### **XV. AMENDMENT**

This Agreement may be amended only by a writing signed by Employee and by a party with member interests in the Company who is authorized per the Company's Operating Agreement.

#### **XVI. SEVERABILITY**

If any term, provision, covenant or condition of this Agreement, or the application thereof to any person, place or circumstance, shall be held to be invalid, unenforceable or void, the remainder of this Agreement and such term, provision, covenant or condition as applied to other persons, places and circumstances shall remain in full force and effect.

#### **XVII. CONSTRUCTION**

The headings and captions of this Agreement are provided for convenience only and are intended to have no effect in construing or interpreting this Agreement. The language in all parts of this Agreement shall be in all cases construed according to its fair meaning and not strictly for or against the Company or Employee.

#### **XVIII. RIGHTS CUMULATIVE**

The rights and remedies provided by this Agreement are cumulative, and the exercise of any right or remedy by either party hereto (or by its successor), whether pursuant to this Agreement, to any other agreement, or to law, shall not preclude or waive its right to exercise any or all other rights and remedies.

#### **XIX. NONWAIVER**

No failure or neglect of either party hereto in any instance to exercise any right, power or privilege hereunder or under law shall constitute a waiver of any other right, power or privilege or of the same right, power or privilege in any other instance. All waivers by either party hereto must be contained in a written instrument signed by the party to be charged and, in the case of the Company, by an officer of the Company (other than Employee) or other person duly authorized by the Company.

#### **XX. NOTICES**

Any and all notices or other communication provided for herein, shall be given by registered or certified mail, return receipt requested, or overnight delivery or to an officer or member of the Company's business in case of the Company to its principal office, and in the case of the Employee to the Employee's residence address or to such other address as may be designated by the Employee.

#### **XXI. ASSISTANCE IN LITIGATION**

Employee shall, during and after termination of employment, upon reasonable notice, furnish such information and proper assistance to the Company as may reasonably be required by the Company in connection with any litigation in which it or any of its subsidiaries or affiliates is, or may become a party; provided, however, that

such assistance following termination shall be furnished at mutually agreeable times and for mutually agreeable compensation.

## **XXII. NON-SOLICITATION**

- a. Non-solicitation. Whether or not contact with a Company employee or independent contractor is initiated by you, on your behalf by a third-party or by a Company employee or independent contractor, you shall not in any way induce any employee or independent contractor associated with the Company to terminate or breach an employment, contractual or other relationship with the Company.
- b. Soliciting Customers After Termination of Agreement. For a period of twenty-four (24) months following the termination of employment and Employee's relationship with the Company, Employee shall not, directly or indirectly, disclose to any person, firm or corporation the names or addresses of any of the customers or clients of the Company or any other information pertaining to them. Neither shall Employee call on, solicit, take away, or attempt to call on, solicit, or take away any customer of the Company on whom Employee has called upon or with whom Employee became acquainted with during the term of your employment, as the direct or indirect result of the employment with the Company.
- c. Reasonableness of the These Restrictions. By signing below, Employee hereby acknowledges that the above-stated restrictions are necessary for the protection of the Company business and are reasonably restricted in scope, time and territory.
- d. Covenants Independent. Each restrictive covenant on the part of the Employee set forth in this Agreement shall be construed as a covenant independent of any other covenant or provisions of this Agreement or any other agreement which the Company and the Employee may have, fully performed and not executory, and the existence of any claim or cause of action by the Employee against the Company whether predicated upon another covenant or provision of this Agreement or otherwise, shall not constitute a defense to the enforcement by the Company of any other covenant.
- e. Injunctive Relief. Employee hereby acknowledges (1) that the Company will suffer irreparable harm if Employee breaches these obligations under this Agreement; and (2) that monetary damages will be inadequate to compensate the Company for such a breach. Therefore, if Employee breaches any of such provisions, then the Company shall be entitled to injunctive relief, in addition to any other remedies at law or equity, to enforce such provisions.

## **XXIII. INDEMNIFICATION**

The Employee hereby agrees to indemnify and hold the Company and its officers, directors, shareholders and Employees harmless from and against any loss, claim, damage or expense, and/or all costs of prosecution or defense of their rights hereunder, whether in judicial proceedings, including appellate proceedings, or whether out of court, including without limiting the generality of the foregoing, attorneys' fees, and all costs and expenses of litigation, arising from or growing out of the Employee's breach of any covenant contained in Sections X, XI, XIII, XXII, and IIVI.

## **XXIV. ACKNOWLEDGMENT**

The Employee acknowledges that when this Agreement is concluded, the Employee will be able to earn a living without violating the foregoing restrictions and that the Employee's recognition and representation of this fact is a material inducement to the execution of this Agreement and to Employee's continued relationship with the Company.

## **XXV. SURVIVAL OF COVENANTS**

All restrictive covenants contained in this Agreement shall survive the termination of this Agreement unless otherwise stated.

## **XXVI. LIMITATIONS ON AUTHORITY**

Without the express written consent from the Company, the Employee shall have no apparent or implied authority to: (i) Pledge the credit of the Company or any of its other Employees; (ii) Bind the Company under any contract, agreement, note, mortgage or otherwise; (iii) Release or discharge any debt due the Company unless the Company has received the full amount thereof; or (iv) sell, mortgage, transfer or otherwise dispose of any assets of the Company.

## **XXVII. REPRESENTATION AND WARRANTY OF EMPLOYEE**

The Employee acknowledges and understands that the Company has extended employment opportunities to Employee based upon Employee's representation and warranty that Employee is in good health and able to perform the work contemplated by this Agreement for the term hereof.

## **XXVIII. INVALID PROVISION; SEVERABILITY**

The invalidity or unenforceability of a particular provision of this Agreement shall not affect the other provisions hereof, and the Agreement shall be construed in all respects as if such invalid or unenforceable provisions were omitted.

## **XXIX. MODIFICATION**

No change or modification of this Agreement shall be valid unless the same be in writing and signed by the parties hereto.

## **XXX. ENTIRE AGREEMENT**

This Agreement contains the entire agreement and supersedes all prior agreements and understandings, oral or written, with respect to the subject matter hereof. This Agreement may be changed only by an agreement in writing signed by the party against whom any waiver, change, amendment, modification, or discharge is sought.

## **XXXI. DISPUTES**

Any controversy, claim or dispute arising out of or relating to this Agreement or the employment relationship, either during the existence of the employment relationship or afterwards, between the parties hereto, their assignees, their affiliates, their attorneys, or agents, shall be litigated solely in state or federal court in Greenville, South Carolina. Each party (1) submits to the jurisdiction of such court, (2) waives the defense of an inconvenient forum, and (3) agrees that valid consent to service may be made by mailing or delivery of such service to the party at the party's last known address, if personal service delivery cannot be easily effected.

**EACH PARTY, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, HEREBY IRREVOCABLY WAIVES ALL RIGHT TO TRIAL BY JURY AS TO ANY ISSUE RELATING HERETO IN ANY ACTION, PROCEEDING, OR COUNTERCLAIM ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY OTHER MATTER INVOLVING THE PARTIES**

**HERETO.**

IN WITNESS HEREOF, each party to this Agreement has caused it to be executed as of the date of execution referenced above.

**CONTENDER AMERICA.**

X

\_\_\_\_\_  
Elizabeth Lord  
Marketing Director

X

\_\_\_\_\_  
Date

X



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Cameron Aldridge  
Director of Human Resources